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LINE: 4

24-CIV-04619

CAVA HOMES, LLC VS. MONIQUE DIAS, ET AL

CAVA HOMES, LLC
MONIQUE DIAS

LYNDSEY C HEATON
PAUL J. SMOOT

PLAINTIFF CAVA HOMES LLC’S MOTION FOR AN ORDER TO SHOW CAUSE AS TO WHY CONTEMPT SANCTIONS SHOULD NOT ISSUE AGAINST DEFENDANTS

TENTATIVE RULING:

THE PARTIES ARE TO APPEAR.

For the reasons stated below, Plaintiff Cava Homes, LLC’s application for issuance of an order to show cause regarding indirect contempt of the November 13, 2025 inspection order is **GRANTED** solely for the purpose of setting a contempt hearing. No finding that any defendant committed contempt, acted willfully, or lacked a lawful excuse is made at this stage. The Court will issue a separate signed order to show cause identifying each respondent, the specific acts or omissions charged, the underlying order alleged to have been violated, and the date, time, and location of the hearing.

BACKGROUND

This dispute concerns two neighboring properties in Hillsborough. In 2019, Plaintiff purchased real property located at 50 Knightwood in Hillsborough (“50 Knightwood”). The property contains a single-family residence and is situated on a hill. Defendant Monique Dias (“Dias”) resides at 60 Knightwood in Hillsborough (“60 Knightwood”), which is owned by Dias’s mother, Defendant Ann Javer, through the Ann Javer Irrevocable Trust. Dias and Defendant Alexandra Fee serve as trustees of the trust. 60 Knightwood is located downslope from 50 Knightwood.

After purchasing the property, Plaintiff submitted plans to the Town of Hillsborough to renovate 50 Knightwood by constructing a two-story residence. The Complaint alleges that Dias has since repeatedly complained to the Town and Plaintiff about the renovation plans and construction, including allegations that Plaintiff caused water to flow onto 60 Knightwood. Plaintiff further alleges that, after a certificate of occupancy was issued for 50 Knightwood, Dias began interfering with efforts to sell the property, resulting in the loss of prospective sales.

GROUND FOR ISSUANCE

The November 13, 2025 order authorizes specified drilling and monitoring at 60 Knightwood subject to notice and permitting conditions. The declarations of John Van Loben Sels and Faybishenko identify alleged refusals of access following attempted scheduling and describe the respondents’ notice of the order. Taken as charging

affidavits, and without resolving competing explanations concerning permits, utilities, insurance, or the order's conditions, the submissions provide a facial basis to require an answer to charges under Code of Civil Procedure sections 1209, subdivision (a)(5), and 1211, subdivision (a). The moving party must establish at the contempt hearing the existence of a valid and sufficiently definite order, each respondent's knowledge and ability to comply, and willful noncompliance. (*Conn v. Superior Court* (1987) 196 Cal.App.3d 774, 784.)

NOTICE AND HEARING

The signed order to show cause and the charging affidavits shall be served on each person against whom contempt is sought in the manner required for an indirect-contempt proceeding. Each respondent shall receive the procedural protections applicable to contempt, including notice of the specific charges and an opportunity to be heard. The Court does not adopt the moving party's characterization of respondents' motives or preclude evidence of inability to comply, ambiguity, compliance with permit requirements, or another lawful excuse. (Code Civ. Proc., §§ 1211–1217; *In re M.R.* (2013) 220 Cal.App.4th 49, 57–58.)

JUDICIAL NOTICE

The Court **GRANTS** judicial notice of Exhibit C solely as to the existence and contents of the identified court record, not the truth of disputed factual assertions in it.

As to Exhibits J, the second Exhibit K, T, and Y, judicial notice is limited to properly authenticated official acts and records; the Court does not take notice of the truth of disputed statements within them.

As to Exhibits R and S, the request is **GRANTED only** for the existence and content of any adequately identified issued permits and **DENIED** as to the accompanying emails.

Judicial notice of Exhibits D, E, the first Exhibit K, O, and P is **DENIED** on the current showing to the extent their origin or official status has not been established; lack of a certification alone is not always dispositive of authentication. (Evid. Code, §§ 452, subds. (c), (d), 453, 1530.)

PLAINTIFF'S OBJECTIONS

Plaintiff's objection No. 1 to the Anderson field notes is **SUSTAINED** on relevance grounds for purposes of issuance of the order to show cause; objections Nos. 2–4 are **MOOT**.

Objections Nos. 1–5 to Defendants' compendium are **OVERRULED** insofar as they assert a categorical bar to considering otherwise admissible material at this preliminary stage. The parties may raise proper evidentiary objections at the contempt hearing.

If the tentative ruling is uncontested, it shall become the order of the Court. The prevailing party shall prepare and submit a proposed order repeating the tentative ruling verbatim, consistent with San Mateo County Superior Court Local Rule 3.403(b)(iv), and give notice as required by law. (Cal. Rules of Court, rule 3.1312.)

2:00 PM

LINE: 5

24-CIV-07657

RICHARD DONOVAN VS. RENNA HU, ET AL

RICHARD DONOVAN
RENN A HU

JACQUELINE M SIMONOVICH
PAUL T LLEWELLYN

**PLAINTIFF AND CROSS DEFENDANT RICHARD DONOVAN'S FOURTH AMENDNED NOTICE OF MOTION TO FILE
ADDITIONAL ATTORNEY FEE RECORDS UNDER SEAL**

TENTATIVE RULING:

For the reasons stated below, Plaintiff Richard Donovan's unopposed motion to file additional attorney-fee records under seal is **GRANTED IN PART**, limited to the confidential narrative portions of Exhibit A to the declaration of Jacqueline M. Simonovich supporting Plaintiff's reply on attorney's fees, as described below. The fee motion remains set for October 15, 2026. Non-opposition alone does not justify sealing. (Cal. Rules of Court, rules 2.550(d)–(e), 2.551(a).)

LEGAL STANDARD

Court records are presumed open unless confidentiality is required by law. (Cal. Rules of Court, rule 2.550(c).) A record may not be filed under seal without a court order, and the Court may not authorize sealing based solely on the parties' agreement, stipulation, or lack of opposition. (Cal. Rules of Court, rule 2.551(a); *Savaglio v. Wal-Mart Stores, Inc.* (2007) 149 Cal.App.4th 588, 597.) The Court may order a record sealed only if it expressly finds facts establishing that: "(1) There exists an overriding interest that overcomes the right of public access to the record; (2) The overriding interest supports sealing the record; (3) A substantial probability exists that the overriding interest will be prejudiced if the record is not sealed; (4) The proposed sealing is narrowly tailored; and (5) No less restrictive means exist to achieve the overriding interest." (Cal. Rules of Court, rule 2.550(d).)

FINDINGS

The records lodged conditionally under seal on August 25, 2026 consist of attorney billing entries for August 1 through August 26, 2025. The Court finds that the entry narratives identifying litigation tasks, legal strategy, or confidential attorney-client communications in this pending action implicate an overriding interest in preserving the attorney-client privilege and protected legal work product. Disclosure of those particular narrative descriptions presents a substantial probability of prejudice to that interest while the litigation is active. (Cal. Rules of Court, rule 2.550(d)(1)–(3); *Los Angeles County Board of Supervisors v. Superior Court* (2016) 2 Cal.5th 282, 300.) These findings concern confidential content, not a categorical privilege for each date, timekeeper initial, hour, rate, or amount appearing on a bill.